

25STCV20390 25STCV20390

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-16

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Case Number: 25STCV20390 Hearing Date: September 16, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 16,

2026 TRIAL

DATE: November 2, 2027

CASE: Jesse Klick v. TRB Melrose, LLC

CASE

NO.: 25STCV20390

MOTION FOR

SANCTIONS

MOVING PARTY/PARTIES: Plaintiff Jesse Klick

RESPONDING PARTY/PARTIES: Defendant

TRB Melrose, LLC

PROOF OF SERVICE:

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Defendant opposes the motion on the

merits, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)

164 Cal.App.4th 814, 826.)

CASE HISTORY:

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July 10, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff Jesse Klick ("Plaintiff")
moves for sanctions against Defendant TRB Melrose, LLC ("Defendant") and Defendant's
counsel of record, Jose-Manuel A. de Castro, based on Defendant's filing of its
motion for sanctions in this action. Defendant
opposes the motion.

TENTATIVE RULING:

Plaintiff's
motion for sanctions is DENIED without prejudice.

Moving
party to give notice.

DISCUSSION:

Code of
Civil Procedure section 128.7 requires an attorney to sign all pleadings,
petitions, notices of motions and other similar papers. (Code Civ. Proc., § 128.7, subd. (a).) By the signature, the attorney
certifies that
the "legal contentions therein are warranted by existing law or by a
nonfrivolous argument for the extension, modification, or reversal of existing
law or the establishment of new law . . . ," and that the "allegations and
other factual contentions have evidentiary support" (Code Civ. Proc., § 128.7, subds. (b)(2),
(b)(3).) If the court determines that an
attorney has violated this requirement, the court may impose sanctions against
the attorney or party responsible for the violation. (Code Civ. Proc., § 128.7, subd. (c).) A court may impose sanctions under
Code of
Civil Procedure section 128.7 only if the challenged pleading "is not withdrawn
or appropriately corrected" within 21 days after service of the motion. (Code Civ. Proc., § 128.7, subd.
(c)(1).)

In its

order of March 3, 2026, the Court denied Defendant's motion for sanctions under Code of Civil Procedure section 128.7.

Now, Plaintiff moves for sanctions under Section 128.7 based on Defendant's filing of its motion for sanctions.

"A motion for sanctions brought by a party or a party's attorney primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation, shall itself be subject to a motion for sanctions." (Code Civ. Proc., § 128.7, subd. (h).) However, Plaintiff did not serve this motion on Defendant until after this Court denied Defendant's motion. As such, Plaintiff cannot satisfy the safe-harbor provision, which requires that Defendant be able to withdraw the motion. (Code Civ. Proc., § 128.7, subd. (c)(1).)

In reply,

Plaintiff argues that Plaintiff need not comply with the safe-harbor provision because Plaintiff seeks sanctions under Code of Civil Procedure section 128.7, subdivision (c)(1), which provides, "If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion."

(Code Civ. Proc., § 128.7, subd. (c)(1).) Plaintiff is correct that Plaintiff may seek Plaintiff's fees for opposing Defendant's motion for sanctions if Defendant's motion for sanctions was frivolous. (See

Musaelian v. Adams (2011) 197 Cal.App.4th 1251, 1257.) However, to recover such fees, Plaintiff must file a motion for attorney's fees and expenses, not a new motion for sanctions under Code of Civil Procedure section 128.7, which requires Plaintiff to comply with the safe-harbor provision. Additionally, Plaintiff must show that Defendant's motion was frivolous, which Plaintiff fails to address in this motion.

Likewise,

Plaintiff's argument that the Court directed Plaintiff to file this motion is incorrect. In its order on Defendant's

motion for sanctions, this Court noted that Plaintiff could not seek sanctions

under Code of Civil Procedure section 128.7 in opposition to a motion. (March 3, 2026 Minute Order.) The Court did not direct Plaintiff to file this motion.

As

such, Plaintiff's motion for sanctions is DENIED without prejudice.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 16, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.